

**INSTRUCTIONS FOR FLORIDA SUPREME COURT APPROVED FAMILY
LAW FORM 12.912(a)
MEMORANDUM FOR CERTIFICATE OF MILITARY SERVICE (09/16)**

When should this form be used?

This form should be used if you **KNOW OR DO NOT KNOW** whether the other party in your case is on active duty in a branch of the military service of the United States. "Active duty" includes reserve personnel of the Army, Navy, Air Force, Marine Corps, and Coast Guard, and members of the Florida National Guard who have been called to active duty for more than thirty (30) days. Even if you believe that the other party **has never** or **would never** join the military, you must show the court proof that he or she is not a member of the military. Therefore, you may need to use this form to provide the court with such proof. See the instructions for an **Affidavit of Military Service**, Florida Supreme Court Approved Family Law Form 12.912(b), for additional information. Please note that the contact information below is correct as of the effective date of this form; however, it may be subject to change. If you have difficulty obtaining the certificates or need additional information, you may wish to contact Military One Source at <https://www.militaryonesource.mil/> or 800-342-9647.

Servicemembers Civil Relief Act (SCRA) Certificates:

For information on obtaining certificates of service or non-service under the Servicemembers Civil Relief Act (SCRA)(formerly known as Soldiers' and Sailors' Civil Relief Act of 1940), please refer to the Defense Manpower Data Center (DMDC) SCRA website: <https://www.dmdc.mil/appj/scra>

You may also write the DMDC at the following address:

Defense Manpower Data Center [Attn: Military Verification]
1600 Wilson Blvd., Suite 400
Arlington, VA 22209-2593

You may be charged a service fee by each military service branch for its response. Please refer to the websites, e-mail addresses, and/or phone numbers listed below for help in determining the amount of each military branch's fee and to verify its current mailing address.

ARMY:

Phone: 888-276-9472

E-mail: usarmy.knox.hrc.mbx.foia@mail.mil

AIR FORCE: HQ AFPC/DS1W, Attn: World Wide Locator, 550 C Street, West, Suite 50, JBSA-Randolph AFB, TX 78150-4752

Phone: 210-565-2450 (Option 1)

COAST GUARD: USCG Commander, Personnel Service Center, Attn: PSD-MR, 4200 Wilson Blvd., Suite 1100, Arlington VA 22203

E-mail: MR_CustomerService@uscg.mil

Fax: 202-372-8440

Instructions for Florida Supreme Court Approved Family Law Form 12.912(a), Memorandum for Certificate of Military Service (09/16)

NAVY: Navy World Wide Locator, Navy Personnel Command, PERS 1, 5720 Integrity Drive, Millington, TN 38055-3120
Phone: 800-522-3451
www.public.navy.mil

MARINE CORPS: Headquarters, United States Marine Corps, Personnel Management Support Branch (MMSB-17), 2008 Elliot Road, Room 201, Quantico, VA 22134
Phone: 703-784-3941 or 703-784-3920
<https://www.hqmc.marines.mil/agencies> or SMB.manpower.mmrp@usmc.mil

PUBLIC HEALTH SERVICE: Attn: Director, Division of Commissioned Corps Officer Support, 1101 Wooten Parkway, Plaza Level, Suite 100, Rockville MD 20852

This form should be typed or printed in black ink. You should complete this form for each branch of the United States' military listed above, and mail the form to each branch with a **check for the appropriate amount and a stamped, self-addressed envelope**. You should keep a copy of the form for your records. After you have received a verification of military status from each branch, you will need to attach those verifications to an **Affidavit of Military Service**, Florida Supreme Court Approved Family Law Form 12.912(b), for filing with the clerk.

IMPORTANT INFORMATION REGARDING E-FILING

The Florida Rules of Judicial Administration now require that all petitions, pleadings, and documents be filed electronically except in certain circumstances. **Self-represented litigants may file petitions or other pleadings or documents electronically; however, they are not required to do so.** If you choose to file your pleadings or other documents electronically, you must do so in accordance with Florida Rule of Judicial Administration 2.525, and you must follow the procedures of the judicial circuit in which you file. **The rules and procedures should be carefully read and followed.**

IMPORTANT INFORMATION REGARDING E-SERVICE ELECTION

After the initial service of process of the petition or supplemental petition by the Sheriff or certified process server, the Florida Rules of Judicial Administration now require that all documents required or permitted to be served on the other party must be served by electronic mail (e-mail) except in certain circumstances. **You must strictly comply with the format requirements set forth in the Rules of Judicial Administration.** If you elect to participate in electronic service, which means serving or receiving pleadings by electronic mail (e-mail), or through the Florida Courts E-Filing Portal, you **must** review Florida Rule of Judicial Administration 2.516. You may find this rule at www.flcourts.org through the link to the Rules of Judicial Administration provided under either Family Law Forms: Getting Started, or Rules of Court in the A-Z Topical Index.

SELF-REPRESENTED LITIGANTS MAY SERVE DOCUMENTS BY E-MAIL; HOWEVER, THEY ARE NOT REQUIRED TO DO SO. If a self-represented litigant elects to serve and receive documents by e-mail, the procedures must always be followed once the initial election is made.

Instructions for Florida Supreme Court Approved Family Law Form 12.912(a), Memorandum for Certificate of Military Service (09/16)

To serve and receive documents by e-mail, you must designate your e-mail addresses by using the **Designation of Current Mailing and E-mail Address**, Florida Supreme Court Approved Family Law Form 12.915, and you must provide your e-mail address on each form on which your signature appears. Please **CAREFULLY** read the rules and instructions for: **Certificate of Service (General)**, Florida Supreme Court Approved Family Law Form 12.914; **Designation of Current Mailing and E-mail Address**, Florida Supreme Court Approved Family Law Form 12.915; and Florida Rule of Judicial Administration 2.516.

Special notes...

Remember, a person who is NOT an attorney is called a nonlawyer. If a nonlawyer helps you fill out these forms, that person must give you a copy of **Disclosure from Nonlawyer**, Florida Family Law Rules of Procedure Form 12.900(a), before he or she helps you. A nonlawyer helping you fill out these forms also **must** put his or her name, address, and telephone number on the bottom of the last page of every form he or she helps you complete.

IN THE CIRCUIT COURT OF THE _____ JUDICIAL CIRCUIT,
IN AND FOR _____ COUNTY, FLORIDA

Case No.: _____
Division: _____

Petitioner,

and

Respondent.

MEMORANDUM FOR CERTIFICATE OF MILITARY SERVICE

TO: () usarmy.knox.hrc.mbx.foia@mail.mil (Army)
() HQ AFPC/DS1W, Attn: World Wide Locator, 550 C. Street West, Suite 50, Randolph AFB, TX 78150-4752 (Air Force)
() USCG Commander, Personnel Service Center, Attn: PSD-MR, 4200 Wilson Blvd, Suite 1100, Arlington, VA 22203 (Coast Guard)
() Navy World Wide Locator, Navy Personnel Command, PERS-1, 5720 Integrity Drive, Millington, TN 38055-3120 www.public.navy.mil (Navy)
() United States Marine Corps, Personnel Support Management Branch, (MMSB-17), , 2008 Elliot Road, Room 201, Quantico, VA 22134 (Marines)
() Public Health Service: Attn: Director, Division of Commissioned Corps Officer Support, <http://dcp.psc.gov/ccmis> (Public Health)

RE: _____
{Name of Respondent} *{Respondent's Social Security Number}*

This case involves a family matter. It is imperative that a determination be made whether the above-named individual, who has an interest in these proceedings, is presently in the military service of the United States, and the dates of induction and discharge, if any. This information is requested under the Servicemembers Civil Relief Act (formerly known as Soldiers' and Sailors' Civil Relief Act of 1940). Please supply verification as soon as possible. My check for \$ _____ for your search fee and a self-addressed, stamped envelope are enclosed.

Dated: _____

Signature of Petitioner

Printed Name: _____

Address: _____

City, State, Zip: _____

Telephone Number: _____

Fax Number: _____

Designated E-mail Address(es): _____

IF A NONLAWYER HELPED YOU FILL OUT THIS FORM, HE/SHE MUST FILL IN THE BLANKS BELOW:

[fill in **all** blanks] This form was prepared for the Petitioner.

This form was completed with the assistance of:

{name of individual} _____,

{name of business} _____,

{address} _____,

{city} _____, *{state}* _____, *{zip code}* _____, *{telephone number}* _____.